

BEFORE THE
FEDERAL COMMUNICATIONS COMMISSION

WASHINGTON, D.C. 20554

In the Matter of)
Space Exploration Holdings, LLC) ICFS File No.
Application for Authorization of) SAT-LOA-20260108-00016
Non-Geostationary Orbit Satellite)
System (Orbital Data Center))

INFORMAL REQUEST OF NICKOLAI G. BAKKEN

PURSUANT TO 47 C.F.R. § 1.41, 5 U.S.C. §§ 555(b) AND 555(e), 5 U.S.C. § 552b, 5 U.S.C. §§ 706(1) AND 706(2)(A), 47 U.S.C. §§ 309(d) AND 309(e), 47 C.F.R. §§ 1.65, 1.1206(b), AND 1.3

Date: March 17, 2026

ADMINISTRATIVE OUTLINE

Filed Pursuant to 47 C.F.R. § 1.41 as an Informal Request; Invoking 5 U.S.C. §§ 555(b), 555(e), 552b, 706(1), and 706(2)(A); 47 U.S.C. §§ 309(d) and 309(e); 47 C.F.R. §§ 1.65, 1.1206(b), and 1.3; with Request for Waiver to the Extent Necessary; with Alternative Request for Leave to Cure; with Preservation to the Fullest Extent Allowable by Law; and Incorporating by Reference the Bakken IO, Bakken EP, Bakken SIO, and Bakken CDN in Their Entirety. This Informal Request is an independent procedural vehicle and does not constitute Petitioner's formal Reply to the Applicant's Consolidated Opposition, which may be filed separately within the applicable pleading window.

This filing contains a record of each independent request, each independently triggering the Commission's obligation under 5 U.S.C. § 555(e) to state grounds for any denial:

Request 1: Ex Parte Compliance Confirmation Under DA 26-113

Request 2: Three-Alternative Findings on Ex Parte Silence

Request 3: Mandatory § 1.65 Compliance and Updated Ownership Attachment

Request 4: Government in the Sunshine Act Compliance

Request 5: TRAC Unreasonable Delay Preservation Notice

Request 6: Consolidated § 555(e) Request List (Twenty-Three Sub-Requests, 6-A through 6-W)

Request 7: Sangamon Valley Prejudgment Notice and Recusal Request

Request 8: APA § 706 Whole-Record Identification

Request 9: Fast-Track Acceptance Express Findings

Request 10: Uncontested Allegation Notice

Request 11: Document Preservation and Targeted FOIA Request Notice

Waiver Request and Alternative Request for Leave to Cure

Prayer for Relief

Preservation of All Rights to the Fullest Extent Allowable by Law

TABLE OF CONTENTS

SUMMARY OF THE FILING.....	4
I. INTRODUCTION AND BASIS FOR FILING.....	9
II. R1: EX PARTE COMPLIANCE UNDER THE NOTICED DESIGNATION.....	14
III. R2: EX PARTE SILENCE: THREE-ALTERNATIVE FINDINGS REQUEST.....	15
IV. R3: MANDATORY § 1.65 COMPLIANCE: UPDATED OWNERSHIP ATTACHMENT.....	16
V. R4: GOVERNMENT IN THE SUNSHINE ACT COMPLIANCE AND PROCESS DESIGNATION.....	18
A. The Section 309(e) Floor: Hearing as Statutory Directive.....	18
B. The Sunshine Act Obligation.....	21
C. Notation Voting and Circulation.....	22
VI. R5: TRAC UNREASONABLE DELAY PRESERVATION NOTICE.....	25
VII. R6: CONSOLIDATED § 555(e) REQUEST LIST.....	29
VIII. R7: SANGAMON VALLEY PREJUDGMENT NOTICE AND RECUSAL REQUEST.....	36
IX. R8: APA § 706 WHOLE-RECORD IDENTIFICATION.....	37
X. R9: FAST-TRACK ACCEPTANCE AND EXPRESS FINDINGS.....	37
XI. R10: UNCONTESTED ALLEGATION NOTICE.....	38
XII. R11: DOCUMENT PRESERVATION NOTICE AND FOIA REQUEST.....	39
XIII. R12: FORECLOSURE OF UNTIMELY SUPPLEMENTATION AND OPPOSITION TO WAIVER REQUESTS.....	45
XIV. WAIVER REQUEST AND ALTERNATIVE REQUEST FOR LEAVE TO CURE....	49
XV: ON THE SCOPE OF THIS FILING.....	53
XVI. PRAYER FOR RELIEF.....	56
XVII. PRESERVATION.....	62
DECLARATION.....	64
CERTIFICATE OF SERVICE.....	65
APPENDIX: PROCEDURAL REFERENCE AVAILABLE COMMISSION DISPOSITION AND SELF-CORRECTION MECHANISMS.....	67

SUMMARY OF THE FILING

This Informal Request consolidates fourteen independent procedural demands under 47 C.F.R. § 1.41, each independently triggering the Commission's obligation under 5 U.S.C. § 555(e) to provide a brief statement of grounds if denied. The filing supplements and does not replace the Bakken IO (March 6, 2026), the Bakken EP (March 9, 2026), the Bakken SIO (March 15, 2026), and the Bakken CDN (filed in ECFS, March 2026). This filing does not constitute Petitioner's formal Reply to the Applicant's Consolidated Opposition, which will be submitted separately within the applicable pleading window.

Request 1 asks the Commission to confirm on the record that all ex parte presentations in this permit-but-disclose proceeding have been disclosed under § 1.1206(b), including any communications transmitted through platforms owned or controlled by the Applicant's corporate parent.

Request 2 observes that the Applicant and its counsel have filed zero ex parte notices in the largest satellite application in Commission history and presents three mutually exclusive explanations: no communications occurred, the outcome is predetermined in violation of Sangamon Valley, or communications occurred through undisclosed channels in violation of the disclosure rules. The Commission is asked to state which explanation applies.

Request 3 identifies an ongoing violation of the Applicant's continuing duty under § 1.65 to amend its application following the February 2-3, 2026 merger that restructured the Applicant's corporate parent, and requests that the Commission direct an amended Ownership Attachment, hold processing in abeyance, and state whether its foreign-ownership review obligations have

been discharged on a pre-merger record. Petitioner notes that the Applicant's opposition was not executed by a corporate officer of record or designated outside counsel.

Request 4 invokes the Government in the Sunshine Act and requests confirmation that any multi-commissioner deliberations on this Application will comply with 5 U.S.C. § 552b. Petitioner requests that the Commission deny any request to close deliberations on this Application in light of the overwhelming public interest and the Chairman's own public statements on the merits during the pleading window, identify any statutory exemption authorizing closed sessions, and state whether the disposition will be placed on the agenda of a public Open Meeting or resolved through notation voting, and if through notation voting, the basis for concluding that process is appropriate for a contested proceeding presenting substantial and material questions of fact.

Request 5 establishes a TRAC unreasonable delay preservation notice pursuant to *Telecommunications Research and Action Center v. FCC*, 750 F.2d 70 (D.C. Cir. 1984), fixes the measurement date for the six TRAC factors, and reserves the right to seek mandamus if the Commission advances the Application toward grant while Petitioner's filings remain unresolved.

Request 6 consolidates twenty-three specific questions from prior filings into a single § 555(e) request list (6-A through 6-W). These cover: completeness under § 25.112(a); the Schedule S satellite-count discrepancy and its certification implications under 18 U.S.C. § 1001; whether ITU coordination data is a non-waivable filing-stage predicate; the limiting principle governing the acceptance decision; the supportability of the environmental certification against peer-reviewed scientific evidence; the extraordinary circumstances standard under § 1.1307(c); the materiality of the stale Ownership Attachment; mutual exclusivity with the Starcloud

application under § 25.155; the fast-track acceptance during a government shutdown; the Chairman's February 4 and March 11th X posts and the 800-plus public responses as potential ex parte presentations and administrative record components; fiscal and resource analysis under the Anti-Deficiency Act; the classification of missing technical predicates as filing-stage or post-grant requirements; cross-docket capacity interdependence between the ODC and SCS applications sharing Gen2 ISL infrastructure; ownership contradictions across concurrent proceedings; whether granting ad hoc waivers would preempt the active Space Modernization rulemaking in SB Docket No. 22-306; .gov infrastructure compliance under the DOTGOV Act and OMB M-23-10; ICFS post-certification modification capability and system integrity; delegated authority limitations under § 0.291 for novel questions; establishment of a parallel ECFS docket on .gov-hosted infrastructure; whether granting the ODC application constitutes a de facto modification of the Gen2 Starlink authorization requiring a separate § 25.117 application; whether all § 558(b) licensing prerequisites have been satisfied; whether the disposition would constitute a rule requiring § 553 notice-and-comment procedures; and whether § 1.1317 prohibits grant while the Bakken EP remains pending. Silent resolution of any item is preserved as an independent ground for reconsideration and judicial review.

Request 7 raises Sangamon Valley prejudgment concerns regarding the Chairman's February 4 and March 11th, 2026 X posts, requests disclosure of whether the Chairman participated in the acceptance determination and will participate in the disposition, and requests either recusal or a stated basis for declining to recuse.

Request 8 requests that the Commission identify the complete administrative record for purposes of APA § 706 whole-record review, including whether Petitioner's filings, the Bakken CDN, the

800-plus public responses to the Chairman's X post, any undisclosed ex parte presentations, and post-filing developments bearing on the Applicant's corporate family are included.

Request 9 asks the Commission to state on the record the basis for accepting this Application within approximately two business days during a government shutdown, and to explain the limiting principle that distinguishes its treatment from the contemporaneous Starcloud application, which had not been accepted as of the 30 day reply window.

Request 10 places the Commission on notice that the surface defects in the certified record have been on the Commission's record since no later than March 9, 2026, that the Applicant is represented by experienced satellite policy counsel with an independent obligation to monitor the docket, and that a detailed inventory of allegations from the Bakken IO, Bakken EP, Bakken SIO, and Bakken CDN that the Applicant's opposition failed to address with factual rebuttal may be filed during the reply window. The Commission is asked to state whether it treated unanswered allegations as conceded.

Request 11 places a document preservation notice on the record and identifies eleven categories of targeted FOIA requests (Categories A through K), with specific date ranges and processing designations for each. Three categories are designated for expedited processing under 5 U.S.C. § 552(a)(6)(E). The preservation obligation extends to vendor-held records that are agency records within the meaning of 5 U.S.C. § 552

Request 12 further places on the record the observation that the opposition was executed without oath, verification, officer-level signature, or the association of counsel of record; asks the Commission to state the evidentiary weight it assigns to such representations; notes the structural irreconcilability of the Applicant's simultaneous certification of completeness, acknowledgment

that the filing instrument cannot accurately describe the system, and request for expeditious grant; preserves the predicate for the Commission's eventual exercise of its enforcement authority under 47 U.S.C. §§ 154(i), 303, 308, 309, and 312 and 18 U.S.C. § 1001 should subsequent filings or conduct warrant; and notes the Applicant's documented practice of attacking other parties' timeliness and compliance failures in this proceeding.

The filing includes a narrow waiver request under § 1.3 grounded in seven independent bases: pro se status; the extraordinary procedural opacity of this proceeding; the progressive discovery of undisclosed requirements; the evenhanded treatment principle; waiver of any rule limiting invocation of independently operative federal statutes to a specific procedural vehicle or party classification; waiver of any undisclosed timeliness requirement; and the Petitioner's ongoing discharge of the burden to raise objections as they are discovered on a docket housed exclusively on third-party commercial infrastructure. In the alternative, Petitioner requests leave to cure any identified deficiency before any adverse action is taken. Petitioner also requests formal placement on the service list under § 1.47.

The filing includes a section addressing the proportionality of its scope to the proceeding it addresses, observing that the requests are directed at an application proposing one million satellites on a certified record encoding three, and that the public interest standard does not scale down because the filing that triggered it scaled up.

All requests are preserved to the fullest extent allowable by law for reply, petition for reconsideration under 47 U.S.C. § 405, application for review under 47 C.F.R. § 1.115, and judicial review under 47 U.S.C. § 402(b) and 5 U.S.C. § 706. The filing preserves all rights under 47 C.F.R. § 1.17 with respect to the accuracy and completeness of factual representations

in this proceeding, all rights under 5 U.S.C. §§ 554, 556, and 557 in the event of hearing designation, and all structural constitutional objections including those arising under the Appointments Clause, the Non-Delegation Doctrine, and the Major Questions Doctrine.

I. INTRODUCTION AND BASIS FOR FILING

Nikolai G. Bakken, pro se petitioner, respectfully submits this Informal Request pursuant to 47 C.F.R. Section 1.41 and 5 U.S.C. Section 555(b). This filing is submitted in the exercise of the right to petition the government for redress of grievances protected by the First Amendment to the United States Constitution, and constitutes protected petitioning activity within an established federal administrative proceeding to the fullest extent allowable by law. This filing consolidates, in a single docket entry, all pending informal requests and procedural demands that have not yet been addressed by the Commission or its staff. Each section below constitutes an independent request under Section 1.41 for which the Commission must provide a brief statement of grounds if denied, as required by 5 U.S.C. Section 555(e). Each request is preserved to the fullest extent allowable by law.

This filing supplements and does not replace the Bakken IO (filed March 6, 2026), the Bakken EP (filed March 9, 2026), the Bakken SIO (filed March 15, 2026), the Bakken CDN Cross-Docket Notice filed in ECFS (filed March 15, 2026), and any other filings by this Petitioner in this docket or in any related docket. This Informal Request does not constitute Petitioner's formal Reply to the Applicant's Consolidated Opposition filed March 16, 2026. Petitioner's substantive Reply to that Opposition will be submitted in a separate filing. All arguments in those filings are preserved and incorporated by reference. No argument is waived by its treatment herein. The protections of the Noerr-Pennington doctrine are invoked to the

fullest extent allowable by law with respect to all statements made in this filing and in all prior filings in this docket.

This proceeding presents a threshold question that must be resolved before the Commission may lawfully act on the underlying Application: whether the record, as presently constituted, satisfies the minimum statutory, procedural, and evidentiary requirements necessary to support agency action. The record demonstrates that it does not. The deficiencies are not matters of discretionary judgment. They are missed statutory deadlines, unfulfilled disclosure obligations, and several declined opportunity windows by the Applicant to bring the record into compliance with governing requirements. Each is independently sufficient to preclude grant. Taken together, they establish that the proceeding is not in a legally cognizable posture for adjudication on the merits.

The primary threshold determination is whether the record presents substantial and material questions of fact requiring hearing designation under 47 U.S.C. Section 309(e). Seven independent formal parties have placed factual disputes on this record that the Commission cannot resolve by silent grant. The Applicant's certified data is mathematically irreconcilable with its narrative. The Applicant's ownership disclosures are materially stale. The Applicant's environmental certification is contradicted by peer-reviewed scientific evidence on the record. The Applicant's opposition did not cure any of these deficiencies. If the Section 309(e) threshold is met, the statute commands hearing designation, and the Commission's process options narrow to one. Request 4, Section A addresses this determination.

The second threshold deficiency is the absence of a current, verified ownership record. The Applicant's continuing duty under 47 C.F.R. Section 1.65 to amend its application following a material change in ownership is self-executing and arises within 30 days without Commission

request. The February 2-3, 2026 merger restructuring the Applicant's corporate parent introduced foreign sovereign investors into the equity structure. The statutory deadline has passed. No amended Ownership Attachment has been filed. The Commission cannot discharge its foreign-ownership review obligations under 47 U.S.C. Sections 310(a) and 310(b) on a pre-merger record, and it cannot make the public interest finding Section 309(a) requires without knowing who owns the entity seeking authorization. Request 3 addresses this deficiency.

The third threshold deficiency is the absence of any ex parte disclosures by the Applicant or its counsel in a permit-but-disclose proceeding of this visibility and consequence. That absence is not a neutral condition. It reflects either a complete lack of external engagement with Commission decision-making personnel, which would be without precedent for a contested NGSO application of this scale, or the absence of required disclosures concerning communications that may bear directly on the Commission's deliberative process. This concern is heightened where the Chairman has engaged with this proceeding on the Applicant's own platform in a manner that intersects with adjudicative functions, yet no corresponding ex parte record has been established by any party to that exchange. Requests 1 and 2 address this deficiency.

The fourth threshold deficiency is the manner in which the Application was accepted. The record reflects apparent deviations from ordinary acceptance and timing practices, including acceptance within approximately two business days during a government shutdown, with an unresolved validation error, on a record the Applicant's own waiver requests acknowledge the filing instrument cannot accurately describe, while a comparable application filed the same week remained unprocessed. No explanation for the differential treatment appears in the record. Request 9 addresses this deficiency.

The fifth and most consequential threshold deficiency is the evidentiary posture of the Applicant's defense. The Applicant has been presented with specific, documented deficiencies by seven independent parties. Rather than curing those deficiencies through sworn submissions, certified amendments, or evidentiary supplementation, the Applicant has elected to rely on unsworn advocacy representations that carry no oath, no verification, no declaration under penalty of perjury, and no signature of any corporate officer, certifying official, or designated outside counsel. While 47 C.F.R. Section 1.52 does not require verification of attorney-signed pleadings, the evidentiary weight the Commission may assign to such representations is categorically less than the weight owed to the sworn petitions filed under Section 25.154(a)(4) and the Section 1001 certification on the application itself. Unsworn advocacy does not cure defects in a sworn record. It does not satisfy obligations of accuracy or completeness. It does not constitute evidence upon which the Commission may rely in making findings of fact that resolve disputed questions. Request 12 addresses this deficiency.

Under established administrative law principles, the Commission must base its actions on a complete and reliable record and must provide reasoned explanations supported by that record. *Motor Vehicle Manufacturers Association v. State Farm Mutual Automobile Insurance Co.*, 463 U.S. 29, 43 (1983). At present, the Commission cannot do so without first addressing these threshold deficiencies. This filing seeks the determinations necessary to establish whether the proceeding is in a legally cognizable posture for adjudication. Each request set forth herein is directed at a discrete defect in the record and independently triggers the Commission's obligation under 5 U.S.C. Section 555(e) to state grounds for any denial. Whether the Commission affirms or declines to affirm the existence of these deficiencies, the absence of responsive findings would

itself constitute a failure to engage the statutory framework and an independent ground for judicial review.

This filing does not request resolution of the merits. It requires confirmation that the procedural and evidentiary foundation necessary to reach the merits exists. Where statutory deadlines have passed, mandatory disclosures remain outstanding, and opportunities to cure have been declined in favor of unsworn advocacy, that foundation is not present. In that posture, any action on the Application would rest on a record that is incomplete, unverified, and procedurally deficient, and would not reflect the reasoned decision-making governing law requires. A disposition of the Application that is silent as to any of the requests below is itself a reviewable agency action under 5 U.S.C. Section 706(2)(A) and State Farm.

The scope of this filing reflects the scope of the proceeding it addresses. The basis for that proportionality, including the good cause and extraordinary circumstances supporting each request and the waiver authority invoked to ensure no request is defeated by an undisclosed procedural limitation, is set forth in Sections XIV and XV below.

II. R1: EX PARTE COMPLIANCE UNDER THE NOTICED DESIGNATION

Public Notice DA 26-113 designates this proceeding as permit-but-disclose under 47 C.F.R. § 1.1200 et seq. Under that designation, all ex parte presentations to Commission decision-making personnel must be disclosed in accordance with 47 C.F.R. § 1.1206(b). The Commission is requested to confirm on the record, in any order or staff letter disposing of or taking action in this proceeding, that all ex parte presentations made by all parties have been disclosed in compliance with § 1.1206(b), including any communications transmitted through platforms owned or

controlled by the Applicant's corporate parent. This request is preserved to the fullest extent allowable by law.

If any ex parte presentations have occurred that are not reflected in the ICFS docket, the Commission should identify them, direct their immediate disclosure, and state whether the Commission's decisional process was informed by any undisclosed communication. If the Commission determines that the permit-but-disclose designation should be changed to restricted under § 1.1208, or has been applied as restricted in practice without formal redesignation, the Commission should state so on the record and confirm that any restriction has been applied equally to all parties from the date of the Public Notice.

III. R2: EX PARTE SILENCE: THREE-ALTERNATIVE FINDINGS REQUEST

As of the date of this filing, the ICFS docket for this proceeding reflects one ex parte filing. That filing was submitted by a petitioner, not by the Applicant or by counsel on the Applicant's behalf. The Applicant, Space Exploration Holdings, LLC, and its counsel of record, HWG LLP, have to date filed zero ex parte notices in this proceeding.

This is a statistical outlier in contested satellite licensing practice. In comparable contested NGSO proceedings, applicants routinely file multiple ex parte presentations to Commission decision-making personnel during and following the pleading window. The Applicant here is represented by experienced satellite policy counsel and is seeking authorization for the largest satellite application in Commission history. The absence of any ex parte filing is not consistent with standard applicant practice in proceedings of this complexity. DA 26-113 designated this as

a permit-but-disclose proceeding, meaning that ex parte presentations are permitted but must be disclosed. The Applicant's disclosure of zero such presentations requires explanation.

Three explanations are available. The Commission is requested to state which applies. This request is preserved to the fullest extent allowable by law.

Explanation One: No communications occurred. If the Applicant and its counsel made zero ex parte presentations to any Commission decision-making personnel during the entire pendency of the largest satellite application in Commission history, that fact should be confirmed on the record.

Explanation Two: Predetermined outcome. If the Applicant has determined that private advocacy is unnecessary because the Commission's disposition is not in doubt, that conclusion constitutes prejudgment in violation of due process and the principle established in *Sangamon Valley Television Corp. v. United States*, 269 F.2d 221 (D.C. Cir. 1959). Petitioner preserves this as a structural due process claim.

Explanation Three: Undisclosed channels. If communications are occurring through channels not appearing in the ICFS docket; including informal personal contacts, communications through platforms controlled by the Applicant's corporate parent, or intermediaries whose participation has not been disclosed; those communications are required to be disclosed under § 1.1206(b) and their absence from the docket is an independent rule violation. Communications transmitted through X (formerly Twitter), a platform whose parent corporation completed a merger with the Applicant's corporate parent on February 2, 2026, are communications on infrastructure the Applicant controls. The Commission should state whether any such communications occurred.

The Commission is requested to state on the record which of these three explanations applies before acting on the Application.

IV. R3: MANDATORY § 1.65 COMPLIANCE: UPDATED OWNERSHIP ATTACHMENT

47 C.F.R. § 1.65 imposes on applicants a continuing duty, without Commission request, to amend their applications to reflect any substantial and significant change in facts that would be required to be disclosed in the original application. The obligation is self-executing and arises within 30 days of the change.

On February 2-3, 2026, Space Exploration Technologies Corp. completed an all-stock acquisition of xAI, introducing new shareholders into the corporate parent of the Applicant, including investors from xAI's January 2026 funding round such as the Qatar Investment Authority and Abu Dhabi-based MGX. The Ownership Attachment on file in this proceeding predates this transaction and does not reflect the current ownership and control structure of the entity that seeks authorization. The Commission accepted the Application on February 4, 2026 -- the day after the merger closed -- on the basis of a pre-merger ownership record that was already stale at the moment of acceptance.

More than 30 days have elapsed since the February 2-3, 2026 merger. The Applicant has not filed an amended Ownership Attachment. This is a violation of § 1.65 that is ongoing and unaddressed. Petitioner further notes for the record that the Applicant's opposition filing of March 16, 2026, was not executed by a corporate officer of record or designated outside counsel. The Commission's authority and obligation to require current ownership disclosures before

acting on this Application arises independently under 47 U.S.C. §§ 310(a), 310(b), 308(b), and 309(a), and 47 C.F.R. §§ 1.5000 et seq. and 1.65.

The Commission is requested to the fullest extent allowable by law to: (1) direct the Applicant to file an amended Ownership Attachment within 14 days of any order or staff letter addressing this request, certified under 18 U.S.C. § 1001, reflecting the current post-merger ownership and control structure including all foreign-affiliated investors in the corporate parent; (2) hold in abeyance any further processing of the Application until the amended Ownership Attachment is filed and reviewed; and (3) state on the record whether the Commission's foreign-ownership review obligations under 47 C.F.R. §§ 1.5000 et seq. and 47 U.S.C. § 309(a) have been discharged on the basis of the pre-merger Ownership Attachment, and if so, by what authority a pre-merger disclosure satisfies the Commission's post-merger review obligation.

V. R4: GOVERNMENT IN THE SUNSHINE ACT COMPLIANCE AND PROCESS DESIGNATION

The question of how the Commission disposes of this Application is not a matter of internal scheduling preference. It is a question governed by statute. Before the Commission selects a process, it must determine what process the record requires. That determination has a mandatory statutory floor that operates independently of the Sunshine Act, independently of the Commission's internal circulation procedures, and independently of any party's request. This section identifies that floor, then addresses the Sunshine Act obligations that apply above it, and then addresses the specific question of notation voting. Each component is independent. Each is preserved to the fullest extent allowable by law.

A. The Section 309(e) Floor: Hearing as Statutory Directive

The process question begins with Section 309(e) of the Communications Act, not with the Government in the Sunshine Act. Section 309(e) provides that when a substantial and material question of fact is presented in a licensing proceeding, the Commission "shall formally designate the application for hearing." 47 U.S.C. Section 309(e). The word "shall" is mandatory and has been consistently treated as such by the D.C. Circuit. *Astroline Communications Co. v. FCC*, 857 F.2d 1556, 1561 (D.C. Cir. 1988). The Commission has no discretion to decline hearing designation once the statutory threshold is met. The inquiry is "much like that performed by a trial judge considering a motion for a directed verdict": if the allegations in the petitions, taken as true, would be prima facie inconsistent with the public interest, and the opposing evidence does not eliminate the factual dispute, hearing is required. *Gencom, Inc. v. FCC*, 832 F.2d 171, 181 (D.C. Cir. 1987).

A hearing under Section 309(e) is an evidentiary proceeding. It requires findings of fact and conclusions of law on the record. It affords all parties the opportunity to present evidence, cross-examine witnesses, and submit proposed findings. 5 U.S.C. Sections 554, 556, 557. It is not a paper vote. It is not circulation. It is not notation. If the Section 309(e) threshold is met, the Commission's internal process options narrow to one, and the questions addressed in Sections B and C below do not arise.

The record in this proceeding presents the predicate for that determination. Seven independent formal parties have placed objections on the record raising factual disputes that the Commission cannot resolve by silent grant. The Applicant's Schedule S encodes three satellites for a system the Narrative describes as up to one million. The Applicant's Ownership Attachment predates a

merger that restructured its corporate parent and introduced foreign sovereign investors into its equity structure. The Applicant's environmental certification asserts no significant impact for a system requiring approximately 200,000 atmospheric reentries per year at steady state, a claim contradicted by peer-reviewed scientific evidence placed on the record. The Applicant's opposition carries no oath, no verification, no declaration under penalty of perjury, and no signature of any corporate officer or certifying official. While 47 C.F.R. Section 1.52 does not require verification of attorney-signed pleadings, the unsworn character of the opposition is relevant to the evidentiary weight the Commission may assign to its factual representations, which is categorically less than the weight owed to the sworn petitions filed under Section 25.154(a)(4) and the Section 1001 certification on the application itself. The specific categories of substantial and material factual dispute are documented in the Bakken IO, the Bakken EP, the Bakken SIO, and the prior filings incorporated by reference in this Request.

These are not interpretive disagreements or policy objections. They are binary factual questions the Commission must answer before it can make the public interest finding Section 309(a) requires:

What system is being authorized?

Who owns the entity seeking authorization?

What are the environmental consequences of the proposed operations?

Does the certified record accurately describe the system proposed?

Each of these questions has been squarely joined on the record by specific allegations supported by record evidence. The Applicant's opposition did not resolve them. It did not provide an

amended Schedule S, an updated Ownership Attachment, an aggregate environmental analysis, or a sworn certification addressing the discrepancies. The factual disputes remain open.

The Commission is accordingly requested to state, in any order disposing of this Application, whether the record presents substantial and material questions of fact within the meaning of Section 309(e). If the Commission concludes that it does, the statute commands hearing designation and the process questions addressed below are moot. If the Commission concludes that it does not, it must state the basis for that conclusion on the record, including which of the specific factual disputes identified above it considers resolved and on what record evidence, in a manner subject to judicial review under 5 U.S.C. Section 706(2)(A) and the standard established in *Motor Vehicle Manufacturers Association v. State Farm Mutual Automobile Insurance Co.*, 463 U.S. 29, 43 (1983). The D.C. Circuit has reversed the Commission for failing to adequately explain its decision not to designate for hearing. *Serafyn v. FCC*, 149 F.3d 1213 (D.C. Cir. 1998). Silence is not an explanation. A disposition that does not address whether the Section 309(e) threshold is met is a disposition that has not engaged the statutory framework Congress established.

Even if the Commission determines that the Section 309(e) threshold is not met, the process question does not default to the Commission's least transparent disposition mechanism. The obligations set forth in Sections B and C below apply independently.

B. The Sunshine Act Obligation

B. The Sunshine Act Obligation

The Sunshine Act presents a binary question. Either the commissioners will deliberate jointly on this Application, or they will not. If they will, the Act applies and the default is open deliberation. If they will not, the Act does not apply and the disposition must proceed through genuinely independent action by each commissioner without any joint discussion.

Section 552b(b) provides that every portion of every meeting of an agency shall be open to public observation. Section 552b(a)(2) defines "meeting" as the deliberations of at least the number of individual agency members required to take action on behalf of the agency where such deliberations determine or result in the joint conduct or disposition of official agency business. The only exceptions are the ten specific exemptions enumerated in Section 552b(c), each of which requires a recorded vote of the members, public announcement of the vote, and identification of the specific exemption invoked. Section 552b(d)(1). There is no third option. The Commission either deliberates jointly and complies with the Act, or it does not deliberate jointly and each commissioner acts independently. Closure by default, by silence, or by the selection of a process label that avoids the statutory definition of "meeting" while accomplishing the same deliberative function is not available.

The notation voting mechanism recognized in *Communications Systems, Inc. v. FCC*, 595 F.2d 797 (D.C. Cir. 1978), falls on the second side of this binary. It avoids the Sunshine Act only because, and only to the extent, commissioners act independently without deliberating. The moment any subset of commissioners numbering a quorum discusses the Application among themselves in any format, whether in person, by telephone, by electronic message, through staff intermediaries, or through any other channel, the exchange crosses from independent action into joint deliberation and the Act's requirements attach.

This binary is directly implicated by the Chairman's conduct in this proceeding. The Chairman published statements about this Application on X on February 4 and March 11, 2026. Those posts communicated a substantive posture on a pending contested Application to every commissioner and staff member with access to the platform. X is a public forum. The posts are visible to every member of the Commission. If any other commissioner or member of their staff engaged with those posts, whether by reply, repost, reaction, internal discussion, or any other form of responsive communication, that exchange constitutes a deliberation among agency members concerning a pending adjudicatory matter within the meaning of Section 552b(a)(2), and the Act is triggered.

Even absent direct engagement, a chairman's public statement of position on a contested licensing matter functions as a one-directional communication to the full Commission that shapes the deliberative environment in which each commissioner will vote. If the proceeding moves to notation voting, each commissioner will cast that vote having been exposed to the Chairman's publicly stated posture. That is not the independent, non-deliberative action the Communications Systems court described as falling outside the Sunshine Act. It is deliberation conducted through a public channel on infrastructure owned by the Applicant's corporate family, without the advance public notice Section 552b(d) requires, without the recorded vote on closure Section 552b(d)(1) requires, and without the transcript Section 552b(f) requires.

The Commission's authority to select its own proceedings does not resolve this binary in the Commission's favor. 47 U.S.C. Section 154(j) provides that the Commission may conduct its proceedings "in such manner as will best conduce to the proper dispatch of business and to the ends of justice." The ends of justice require, at minimum, the appearance of impartial and transparent deliberation in a contested quasi-adjudicatory proceeding. Where a commissioner has

publicly discussed the merits of a pending Application on a platform owned by the Applicant's corporate family on two occasions during the pendency of the proceeding, and where the proceeding presents the predicate for mandatory hearing designation under Section 309(e), the selection of the least transparent disposition mechanism available is not consistent with the ends of justice.

The Commission is requested to state on the record: (1) whether any commissioner or member of a commissioner's staff engaged with either of the Chairman's X posts in any manner, and if so, whether the Commission considers that engagement to constitute a deliberation within the meaning of Section 552b(a)(2); (2) whether any deliberation among two or more commissioners concerning this Application has occurred or is anticipated in any format; and (3) if deliberation has occurred or will occur, whether the Commission intends to comply with the open-meeting default of Section 552b(b) or invoke a specific exemption under Section 552b(c), and if the latter, which exemption and on what basis.

Due to the overwhelming public interest in this proceeding, as further evidenced by the participation of seven independent formal parties and approximately 1,500 public comments, Petitioner respectfully requests that the Commission deny any request to close deliberations on this Application. If the Commission nevertheless intends to hold any closed session at which the ODC Application, its disposition, or the conditions of any grant will be discussed, the Commission is requested to: (1) identify on the public record of this proceeding the specific statutory exemption under 5 U.S.C. Section 552b(c) that authorizes the closure; (2) make available the recorded vote of each member on the question of closure as required by Section 552b(d)(1); and (3) preserve a complete transcript or detailed minutes of the closed session as required by Section 552b(f). A closed meeting on a contested licensing matter that does not

satisfy each of these requirements is a violation of Section 552b and an independent ground for judicial review of any disposition that follows.

This request is preserved to the fullest extent allowable by law.

C. Notation Voting and Circulation

The question addressed in this subsection arises only if the Commission determines that the Section 309(e) hearing obligation is not triggered. If it is triggered, the disposition mechanism is an evidentiary hearing and notation voting does not arise.

Petitioner requests that the Commission state on the record whether the disposition of this Application will be placed on circulation for notation voting or will be placed on the agenda of a public Open Meeting.

Petitioner acknowledges that the D.C. Circuit held in *Communications Systems, Inc. v. FCC*, 595 F.2d 797 (D.C. Cir. 1978), that the Sunshine Act does not per se prohibit the Commission from disposing of matters through notation voting rather than at meetings. That holding is limited to the proposition that notation voting, standing alone, does not trigger the Sunshine Act's procedural requirements because notation voting does not constitute a "meeting" within the meaning of Section 552b(a)(2). The court did not address, and expressly declined to reach, whether excessive reliance on notation voting for significant contested matters would raise concerns under the spirit of the Act. The court noted commentary suggesting that agencies should refrain from such excessive reliance, but stated that the issue was not presented because the particular matter at issue did not warrant greater consideration than it received. 595 F.2d at 801 n.11.

This proceeding is factually distinguishable from the routine rulemaking item at issue in Communications Systems on every dimension the court identified as relevant. That case did not involve a contested licensing application with multiple petitions to deny. It did not involve an application triggering the mandatory hearing provisions of Section 309(e). It did not involve a proceeding in which a commissioner had publicly discussed the merits on a platform owned by the applicant's corporate family. It did not involve the largest satellite application in Commission history. It did not involve an application the agency itself fast-tracked through acceptance on an unprecedented timeline. The D.C. Circuit left open the question of where the boundary lies between permissible use of notation voting and reliance that exceeds what the Act's purposes can sustain. If this proceeding does not cross that boundary, no proceeding before the Commission ever will.

The Commission's own conduct forecloses the characterization of this Application as a routine matter suitable for quiet disposition. The Commission accepted this Application within approximately two business days during a government shutdown. The Public Notice quoted the Applicant's description of the system as representing the "first step towards becoming a Kardashev II-level civilization." The Chairman published posts on X on the same day the Public Notice issued and again during the active opposition window. The Commission chose to accept and publicize this Application as extraordinary. It cannot now dispose of it as ordinary. An agency that fast-tracked acceptance because the Application warranted immediate attention cannot select the disposition mechanism that affords the least public scrutiny without explaining why the same characteristics that justified extraordinary processing at the intake stage justify ordinary processing at the disposition stage.

The Commission's own personnel have recognized the institutional limits of circulation for significant contested items. In 2016 and 2018, then-Commissioner O'Rielly published proposals on the Commission's official blog acknowledging that circulation items that are long pending, controversial, or of significant public interest should be placed on the Open Meeting agenda rather than resolved through the notation process. Those observations reflect an institutional understanding that not every matter is appropriate for quiet disposition, and that the Commission's internal procedures themselves contemplate the exercise of judgment about which items warrant public deliberation.

See Michael O'Rielly, *Improving the FCC Circulation Process*, FCC Blog (May 31, 2016), <https://www.fcc.gov/news-events/blog/2016/05/31/improving-fcc-circulation-process>; See also Michael O'Rielly, *Repairing the Must Vote Timing*, FCC Blog (Jan. 9, 2018), <https://www.fcc.gov/news-events/blog/2018/01/09/repairing-must-vote-timing>; Michael O'Rielly, *Further Improving the FCC's Procedures*, FCC Blog (Dec. 20, 2018), <https://www.fcc.gov/news-events/blog/2018/12/20/further-improving-fccs-procedures>.

Petitioner does not assert that the Commission is categorically prohibited from using notation voting. Petitioner requests that the Commission state on the record whether it intends to dispose of this Application on circulation, and if so, the basis for concluding that notation voting is appropriate for a contested proceeding of this scale and complexity. The Commission's stated reasons for that conclusion become part of the reviewable record. Silence on the question is preserved as an independent ground for reconsideration and judicial review.

This request is preserved to the fullest extent allowable by law.

VI. R5: TRAC UNREASONABLE DELAY PRESERVATION NOTICE

Petitioner hereby places on the record the following preservation notice pursuant to Telecommunications Research and Action Center v. FCC, 750 F.2d 70 (D.C. Cir. 1984), and 5 U.S.C. Section 706(1). This request is preserved to the fullest extent allowable by law.

The following filings by this Petitioner are pending before the Commission in this docket and have not been acted upon, denied, or addressed by any order or staff letter as of the date of this Informal Request:

The Bakken IO, filed March 6, 2026, an Informal Objection under 47 C.F.R. Section 25.154(b), raising threshold deficiencies in the certified record including the Schedule S encoding discrepancy, the absence of ITU coordination data, the staleness of the Ownership Attachment, the unsupported environmental certification, and the completeness question under 47 C.F.R. Section 25.112(a).

The Bakken EP, filed March 9, 2026, a Petition for Environmental Review under 47 C.F.R. Section 1.1307(c) and Supplemental Informal Objection, invoking the extraordinary circumstances standard, placing peer-reviewed scientific evidence on the record contradicting the Applicant's environmental certification, and supported by a sworn declaration under 28 U.S.C. Section 1746.

The Bakken SIO, filed March 15, 2026, a Supplemental Informal Objection, Comment, and Consolidated Preservation of Rights under 47 C.F.R. Sections 25.154(b) and 1.41, containing twenty-two structural observations on the certified record, eight categories of relief requested including hearing designation under 47 U.S.C. Section 309(e) and return under 47 C.F.R. Section

25.112, formal opposition to each pending waiver request individually and collectively, formal opposition to any withdrawal not accompanied by dismissal with prejudice, the Sangamon Valley prejudgment preservation, the ICFS infrastructure and .gov compliance observations, and requests for waiver and elevation of all prior filings to petition-to-deny status to the extent necessary to preserve hearing rights, party-in-interest status, and mandatory Commission response obligations under 47 U.S.C. Section 309(d). The Applicant's Consolidated Opposition filed March 16, 2026 acknowledges this filing on the record.

The Bakken CDN, filed March 15, 2026 in ECFS, a Cross-Docket Notice identifying capacity interdependence between the ODC and SCS applications sharing Gen2 ISL infrastructure, ownership contradictions across concurrent proceedings involving the Applicant's corporate family, and rulemaking preemption concerns arising from the relationship between the ad hoc waiver disposition in this proceeding and the active Space Modernization rulemaking in SB Docket No. 22-306.

This Informal Request, filed March 17, 2026, consolidating twelve independent requests each triggering a Section 555(e) response obligation.

Each of these filings independently requires a substantive Commission response. The Bakken EP independently requires written findings of fact and conclusions of law under 47 U.S.C. Section 309(d) if treated as a petition to deny, and independently requires a substantive determination under 47 C.F.R. Section 1.1307(c) whether or not it is so treated. The Bakken SIO requests hearing designation under Section 309(e) and return under Section 25.112, and to the extent elevated to petition-to-deny status pursuant to its own waiver and elevation requests, independently triggers the Section 309(d) findings obligation. The Bakken IO and this Informal

Request each independently require a brief statement of grounds for any denial under 5 U.S.C. Section 555(e). The obligation to respond to each is non-discretionary. None may be resolved by silence, by implication, or by a disposition of the Application that does not address the specific arguments and requests each filing contains.

The date of this filing, March 17, 2026, establishes the measurement point from which any unreasonable delay in ruling on these filings will be assessed under the six TRAC factors. Three of those factors bear directly on this proceeding. First, any delay must be governed by a rule of reason, and the Commission's own fast-track acceptance of this Application within approximately two business days establishes the Commission's own benchmark for what reasonable processing speed looks like in this docket. An agency that processed the Applicant's deficient filing in two days cannot take months or years to address the objections that deficient filing generated without explaining the asymmetry. Second, delays that might be reasonable in the sphere of economic regulation are less tolerable when human health and welfare are at stake. The environmental record in this proceeding, including peer-reviewed scientific evidence of stratospheric metallic accumulation from satellite reentries at existing constellation scales, the Bakken EP's invocation of 47 C.F.R. Section 1.1307(c), and the aggregate atmospheric loading questions seven independent parties have placed on the record, moves this proceeding out of the category of routine economic regulation and into the category where delay carries consequences for human health and the physical environment. Third, the court considers the nature and extent of the interests prejudiced by delay. The interests here are not limited to one petitioner. They encompass the approximately 1,500 members of the public who filed comments, the seven independent formal parties whose objections remain unaddressed, and the scientific and environmental commons that would be irreversibly affected by a grant on the current record.

The Commission is requested to state, in any order disposing of the Application, the date on which it received each of the filings identified above, the date on which it acted on each, and whether it considers any delay between those dates to have been consistent with its obligations under 47 U.S.C. Section 309(d) and 5 U.S.C. Section 555(b). If the Commission advances the Application toward grant while any petition, objection, or request by this Petitioner remains unresolved, Petitioner reserves the right to file a petition for writ of mandamus in the United States Court of Appeals for the District of Columbia Circuit seeking to compel agency action unlawfully withheld or unreasonably delayed under 5 U.S.C. Section 706(1). The sixth TRAC factor provides that the court need not find any impropriety lurking behind agency lassitude in order to hold that agency action is unreasonably delayed. Petitioner does not allege impropriety. Petitioner places the Commission on notice that the clock is running, that the measurement date is fixed, and that the record supporting mandamus relief will grow stronger with each day the Commission advances the Application without addressing the filings that contest it.

This request is preserved to the fullest extent allowable by law.

VII. R6: CONSOLIDATED § 555(e) REQUEST LIST

Pursuant to 5 U.S.C. § 555(e), the Commission must provide a brief statement of the grounds for denial of any written request of an interested person. The following requests, each made in prior filings and not yet answered by the Commission or its staff, are hereby consolidated and restated

to ensure that each is independently identified as a § 555(e) request requiring a stated response. Each is preserved to the fullest extent allowable by law.

Request 6-A. Whether the Application is sufficiently complete and evaluable as filed to permit ordinary processing under 47 C.F.R. § 25.112(a). Bakken IO at Section II.A.

Request 6-B. Whether the Schedule S encoding of three satellites for a system described as one million constitutes an inaccuracy in a structured data field certified under 18 U.S.C. § 1001, or a formatting limitation covered by the pending waiver requests. Bakken IO at Section II.B.

Request 6-C. Whether the absence of ITU advance publication and coordination data at filing is a filing-stage predicate that cannot be waived under 47 C.F.R. § 1.3, or whether the pending waiver requests extend to this requirement. Bakken IO at Section II.B.

Request 6-D. Whether the Application should have been returned under § 25.112(a) at the intake stage, and if not, what limiting principle governed the acceptance decision. Bakken IO at Section II.D.

Request 6-E. Whether the Commission considers the Form 312 environmental certification -- asserting no significant environmental impact for a system requiring approximately 200,000 atmospheric reentries per year at steady state -- supportable on the current record, in light of the peer-reviewed scientific evidence on the record contradicting that assertion. Bakken IO at Section IV; Bakken EP at Section VI.

Request 6-F. Whether the Commission has determined that the proposed action may have a significant environmental effect within the meaning of 47 C.F.R. § 1.1307(c), and if not, on

what basis it concludes that extraordinary circumstances do not exist given the evidence on the record. Bakken EP at Section IV.

Request 6-G. Whether the post-filing February 2-3, 2026 merger renders the Ownership Attachment materially stale, and whether the Commission's foreign-ownership review obligations under 47 U.S.C. § 309(a) and 47 C.F.R. §§ 1.5000 et seq. can be discharged on the basis of a pre-merger disclosure. Bakken IO at Section IV.

Request 6-H. Whether the SpaceX ODC Application and the Starcloud application (ICFS File No. SAT-LOA-20260202-00073) are mutually exclusive within the meaning of 47 C.F.R. § 25.155, and if so, what comparative review framework will be applied before either application is granted.

Request 6-I. Whether the Commission's acceptance of the Application within approximately two business days of available staff time during a government shutdown period was consistent with 47 C.F.R. § 25.112(a), and what limiting principle governed that determination.

Request 6-J. Whether the Chairman's February 4, 2026 post on X (formerly Twitter) -- published on infrastructure owned by the Applicant's corporate parent -- constitutes an ex parte presentation subject to the disclosure obligations of 47 C.F.R. § 1.1206(b), and whether the 800-plus public responses generated on that platform are part of the official administrative record. Bakken SIO at Section IX.

Request 6-K. What fiscal or resource analysis, if any, the Commission has conducted regarding the practical costs of supervising and enforcing compliance for an authorization at the described scale, and whether any such burden has been assessed as compatible with

currently available appropriations and lawful authority under 31 U.S.C. §§ 1341-1342. Bakken IO at Section V.

Request 6-L. Whether the missing technical predicates identified in the Bakken IO and Bakken EP are filing-stage requirements or matters properly deferred to post-grant conditions, and the legal basis for that determination.

Request 6-M. Whether the Commission has evaluated or intends to evaluate the aggregate capacity demands the ODC application and the SCS application (GN Docket No. 25-340) would simultaneously place on the Gen2 Starlink constellation's optical inter-satellite link infrastructure, and whether an authorization in either proceeding that commits Gen2 ISL capacity without reference to the other constitutes a reasoned disposition within the meaning of State Farm. Bakken CDN at Section III.B.

Request 6-N. Whether the Applicant's corporate family is presenting inconsistent corporate identities to this Commission across concurrent proceedings, operating as the post-merger entity in GN Docket No. 25-302 (EchoStar spectrum assignment) while defending a pre-merger Ownership Attachment in ICFS File No. SAT-LOA-20260108-00016, and whether the Commission may lawfully act on either proceeding without requiring the Applicant to harmonize its corporate disclosures. Bakken CDN at Section III.A.

Request 6-O. Whether granting the processing round, milestone, and surety bond waivers requested in this Application would establish precedent that preempts or renders moot the Commission's active rulemaking in SB Docket No. 22-306, which is developing the framework for evaluating applications of precisely the scale this Application describes, and whether the Commission intends to address the relationship between the ad hoc waiver disposition and the pending rulemaking before acting. Bakken CDN at Section III.C.

Request 6-P. Whether the Commission's filing infrastructure for this proceeding, which resolves to commercial vendor domains rather than .gov-hosted infrastructure, complies with the requirements of the DOTGOV Online Trust in Government Act of 2020 (Pub. L. 116-260, Division U, Title III) and OMB Memorandum M-23-10, and whether the Commission has evaluated whether a proceeding of this scale and public significance should be accessible through official .gov-hosted infrastructure consistent with the parallel .gov submission pathways the Commission provides for other proceedings involving this same Applicant. Bakken SIO; Bakken CDN at Section II and Prayer for Relief Item 8.

Request 6-Q. Whether the Commission's ICFS system permits post-certification modification of docket entries without triggering recertification or a system-level audit, and if so, whether that capability has been evaluated as a systemic vulnerability affecting the integrity of certified filings across all proceedings housed in ICFS, and whether the specific post-certification modifications documented in the Bakken SIO at Section V, Observation xvii, have been reviewed by Commission staff. Bakken SIO at Section V, Observation xvii and SHA-256 Document Integrity Statement.

Request 6-R. Whether the Space Bureau possesses delegated authority under 47 C.F.R. § 0.291 to act on this Application, given that the Application presents novel questions of fact, law, and policy that cannot be resolved under outstanding precedents and guidelines, including the authorization of orbital artificial intelligence compute infrastructure for which no prior Commission precedent exists, the application of a categorical environmental exclusion to a system 133 times larger than any previously reviewed constellation, and the evaluation of a certified record encoding three satellites for a system described as one million. Section 0.291 prohibits the exercise of delegated authority over matters presenting

novel questions. The Commission is requested to state whether this Application will be acted upon by the full Commission or under delegated authority, and if under delegated authority, what precedent or guideline governs the disposition of an application at this scale and of this character.

Request 6-S. Whether the Commission will establish a parallel docket entry in the Electronic Comment Filing System on fcc.gov that mirrors or references the ICFS proceeding under File No. SAT-LOA-20260108-00016, accepts public submissions through .gov-hosted infrastructure, and provides the parallel submission pathway requested in the Bakken SIO and Bakken CDN. The Commission's own ECFS system demonstrates that .gov-hosted comment submission infrastructure exists, is functional, and is available for proceedings involving this same Applicant, as evidenced by GN Docket No. 25-340 (DA 25-1018, directing filings to both ECFS and ICFS) and GN Docket No. 25-302 (DA 25-917, same). The ODC proceeding is the only proceeding among those identified in the Bakken CDN that lacks any .gov submission pathway. The ICFS system through which this proceeding is exclusively housed resolves to commercial vendor domains, authenticates users through third-party identity management infrastructure, and presents documented chain-of-custody concerns including the ability of parties to modify docket entries after certification, the unpopulated acceptance date field, the absence of standard acceptance workflow indicators, and the appearance of the Public Notice as an Applicant-uploaded attachment rather than a Commission-generated instrument. These concerns are documented in the Bakken SIO at Section V, Observations xvii and xviii, and in the SHA-256 Document Integrity Statement. The integrity of the administrative record for purposes of judicial review under 5 U.S.C. § 706 cannot be assured on a platform whose chain of custody has been placed in question on

the record and not rebutted. A parallel .gov-hosted docket would provide an independent, government-administered repository for the record of this proceeding on infrastructure whose chain of custody the Commission directly controls. Bakken SIO; Bakken CDN at Section II and Prayer for Relief Item 8.

Request 6-T. Whether granting the ODC application would constitute a de facto modification of the Gen2 Starlink authorization (SAT-LOA-20200526-00055 and subsequent amendments), given that the ODC system's exclusive reliance on Gen2 optical inter-satellite links for data relay would commit Gen2 infrastructure to a purpose beyond what the Gen2 authorization permits, and whether any such modification requires a separate application under 47 C.F.R. § 25.117, new public notice, and opportunity for comment by parties in the Gen2 proceeding. The Gen2 ISL authority was granted for the Gen2 constellation's own operations. No modification application has been filed to extend that authority to relay traffic from a distinct network of up to one million compute nodes. The Commission is requested to state whether it may authorize the ODC system's dependence on Gen2 ISL capacity without first determining that the Gen2 authorization permits that use, or whether a modification of the Gen2 authorization is a predicate to any ODC grant. Bakken SIO at Section V, Observation iii; Bakken CDN at Section III.B.

Request 6-U. Whether the Commission has determined that all licensing prerequisites established by law under 5 U.S.C. § 558(b) have been satisfied for this Application, and if so, on what record basis, given the documented absence of bounded technical parameters, current ownership disclosures, aggregate environmental analysis, and ITU coordination data. Section 558(b) provides that no license may be granted unless the applicant has satisfied all requirements established by law. This is a statutory precondition independent of any petition,

any waiver, and any balancing of equities. The Commission is requested to identify the specific requirements it considers satisfied and the specific record evidence on which it relies for each.

Request 6-V. Whether the Commission's disposition of this Application, if it establishes any precedent, policy, or standard for the evaluation of orbital data center applications, megaconstellation-scale systems, or applications whose primary function is described as other than telecommunications, constitutes a rule within the meaning of 5 U.S.C. § 551(4) requiring notice-and-comment procedures under 5 U.S.C. § 553 before it may take effect.

Request 6-W. Whether 47 C.F.R. § 1.1317 prohibits the Commission from granting this Application while the Bakken EP remains pending and unresolved, and if not, on what basis the Commission concludes that no significant environmental impact determination has been made or is warranted.

The Commission is requested to address each item on this list in any order disposing of the Application. Silent resolution of any item is not a lawful response under § 555(e) and will be preserved as an independent ground for reconsideration and judicial review.

VIII. R7: SANGAMON VALLEY PREJUDGMENT NOTICE AND RECUSAL REQUEST

Petitioner respectfully requests that the Commission address on the record whether the Chairman's public statements on X concerning this Application constitute a prejudgment of the proceeding's merits within the meaning of *Sangamon Valley Television Corp. v. United States*, 269 F.2d 221 (D.C. Cir. 1959). This request is preserved to the fullest extent allowable by law.

On February 4, 2026, the same day the Commission accepted the Application for filing and issued Public Notice DA 26-113, the Chairman published a post on X describing the Application in affirmative terms using the phrase "welcomes" and "seeks comment," a term of art in FCC practice signifying an invitation to public participation in a pending proceeding. The post was published on infrastructure owned by the Applicant's corporate parent, two days after that corporate parent acquired the platform. The post reached approximately 2.6 million viewers. None of the public responses appear on any official record.

On March 11, 2026, during the active opposition window and while seven formal parties' objections were pending on the docket, the Chairman published a second post on X referencing the Application. This post was made after the Bakken IO, the Bakken EP, four petitions to deny, and multiple informal objections had been filed placing specific factual disputes on the record. A second public statement on the Applicant's same platform, made after contested pleadings have been filed and while the proceeding remains pending, compounds the prejudgment concern. Where the February 4 post could be characterized as contemporaneous with the Public Notice, the March 11 post cannot. It was made with full knowledge that the Application is contested, that substantial factual disputes have been joined, and that the Commission's adjudicative obligations under 47 U.S.C. Section 309(d) and (e) have been triggered. A reasonable observer aware of both posts would question whether the Chairman has maintained the impartiality the due process clause and Sangamon Valley require of a decision-maker in a contested licensing proceeding.

Petitioner does not assert that the Chairman acted with improper intent. Petitioner requests that the Commission state on the record: (1) whether the Chairman participated in the acceptance-for-filing determination; (2) whether the Chairman will participate in the disposition of the Application; (3) whether the Chairman has considered whether the February 4 and March

11 posts, taken individually or together, would cause a reasonable observer to question the impartiality of the proceeding under due process standards; and (4) if the Chairman declines to recuse, the basis for that determination. Petitioner preserves the Sangamon Valley prejudgment argument for judicial review.

IX. R8: APA § 706 WHOLE-RECORD IDENTIFICATION

Pursuant to 5 U.S.C. § 706, judicial review of this proceeding will be conducted on the basis of the "whole record." Petitioner requests that the Commission identify, in any order disposing of the Application, what documents the Commission treats as constituting the complete administrative record for purposes of § 706 review. This request is preserved to the fullest extent allowable by law.

In particular, the Commission should state: (1) whether the Bakken IO, Bakken EP, Bakken SIO, Bakken CDN, and all other Petitioner filings are part of the administrative record; (2) whether the 800-plus public responses to the Chairman's February 4 X post are part of the administrative record; (3) whether any ex parte presentations made through informal channels or through X are part of the administrative record; and (4) whether the record includes the post-filing developments identified in the Bakken IO at Section III, including the February 2-3, 2026 merger and other publicly reported developments bearing on the Applicant's corporate family during the pleading window.

An administrative record that excludes material information before the agency at the time of decision is itself a basis for remand under § 706. Petitioner preserves this as an independent judicial review ground.

X. R9: FAST-TRACK ACCEPTANCE AND EXPRESS FINDINGS

The Commission is requested to state on the record the basis for its acceptance of this Application within approximately two business days of available staff review time during a period affected by the federal government shutdown. This request is preserved to the fullest extent allowable by law.

47 C.F.R. § 25.112(a) provides that applications not meeting completeness and conformance requirements "shall be returned." The Form Instructions state that if required information is not provided, "processing of the application may be delayed or the application may be returned without action." The standard Part 25 staff review period is 37 days. The Applicant's own Waiver Requests acknowledge that the standard filing instrument "cannot accurately describe" the proposed system. The Schedule S encodes three satellites for a system described as one million. ITU coordination data is absent. Five structural waivers are pending. A form-validation error is unresolved.

The Starcloud application, filed the same week, using the same filing vehicle, for a comparable system, requesting the same waivers, had not been accepted for filing as of the 30 day reply window. The Commission should state what review was conducted of the SpaceX Application before acceptance, what finding was made under § 25.112(a), and what limiting principle distinguishes the two applications' treatment at the acceptance stage. This observation is preserved as a differential-treatment equal-protection argument and as an independent State Farm arbitrary-and-capricious ground.

XI. R10: UNCONTESTED ALLEGATION NOTICE

The surface defects in the certified record were first raised in the Bakken IO filed March 6, 2026, expanded with supporting waiver grounds in the Bakken EP filed March 9, 2026, and further strengthened in the Bakken SIO filed March 15, 2026. The Applicant's opposition acknowledges awareness of filings on this record. The Applicant is represented by experienced satellite policy counsel with an independent obligation to monitor the docket of the application it filed and certified. The substantive allegations have been squarely on the Commission's record since no later than March 9, 2026, affording the Applicant ample time under both the Commission's rules and its reply rights to respond.

Pursuant to the Commission's practice under 47 C.F.R. § 1.45, Petitioner places on the record notice that a detailed inventory of specific allegations in the Bakken IO, Bakken EP, Bakken SIO, and Bakken CDN that the Applicant's opposition did not specifically address with factual rebuttal may be filed during the reply window. This request is preserved to the fullest extent allowable by law.

The Commission is requested to state, in any order disposing of the Application, whether it treated unanswered allegations as conceded, and if not, what standard it applied to determine which unaddressed allegations required independent evidence rather than adoption as uncontested fact.

XII. R11: DOCUMENT PRESERVATION NOTICE AND FOIA REQUEST

Pursuant to 5 U.S.C. § 552(a)(6)(E) and 47 C.F.R. § 0.461, Petitioner demands expedited processing of all FOIA requests identified herein. A compelling need exists because the requested records are required by a party actively participating in an expedited federal administrative adjudication of unprecedented scale. The Commission's continuing processing of

this Application while withholding the records detailing how the Application bypassed standard acceptance criteria poses an imminent threat to Petitioner's due process rights and the procedural integrity of the proceeding.

Petitioner affirmatively invokes the statutory prohibition of 5 U.S.C. § 552(a)(2). To the extent the Space Bureau relied upon any internal administrative staff manual, processing guideline, unwritten policy, or supervisor instruction to override the mandatory validation errors in the Applicant's Schedule S or to accept an application lacking ITU coordination data under 47 C.F.R. § 25.112(a), the Commission is hereby placed on notice that such manual, policy, or instruction has not been indexed or made available to the public. Therefore, pursuant to the strict statutory command of 5 U.S.C. § 552(a)(2), the Commission is legally prohibited from relying on, using, or citing that undisclosed manual or instruction against Petitioner or any other party objecting to the acceptance of this Application.

Petitioner intends to submit, or has submitted, Freedom of Information Act requests under 5 U.S.C. Section 552 targeting the following categories of Commission records. Categories B, H, and K are designated for expedited processing under 5 U.S.C. Section 552(a)(6)(E) and 47 C.F.R. Section 0.461, for the reasons stated following each designation. All other categories are submitted for standard processing.

Category A (Standard Processing). All communications between Commission staff and the Applicant or its counsel from December 1, 2025 through March 17, 2026, concerning the acceptance of the Application, the form-validation error, the Schedule S satellite-count discrepancy, the basis for proceeding to public notice, and any pre-filing consultations or submissions relating to ICFS File No. SAT-LOA-20260108-00016.

Category B (Expedited Processing). Any internal FCC staff manual, processing guide, written policy, or administrative instruction governing acceptance review under 47 C.F.R. Section 25.112, including any guidance on when form-validation errors may be overridden or accepted over objection, in any version in effect at any time from January 1, 2020 through the date of this request. Expedited processing is warranted because the burden of production is minimal. If the manual exists, it is a single document or a small set of documents. If it does not exist, the response is a statement to that effect. In either case, the records bear directly on the pending proceeding: Petitioner and six other formal parties have challenged the acceptance determination, and the Commission cannot lawfully rely on undisclosed internal guidance against those parties under 5 U.S.C. Section 552(a)(2). Production or confirmation of nonexistence is necessary for meaningful participation in the reply window.

Category C (Standard Processing). Any communications between Commission personnel and DOGE-affiliated personnel, contractors, or detailees concerning this Application, ICFS File No. SAT-LOA-20260108-00016, for the period January 20, 2025 through March 17, 2026.

Category D (Standard Processing). The Chairman's calendar entries for January 1, 2026 through March 17, 2026, and any communications between the Chairman's office and the International Bureau or Space Bureau concerning this Application during that period.

Category E (Standard Processing). Any communications between the Commission and the State Department's International Telecommunications Advisory Committee concerning the absence of ITU advance publication and coordination data in this Application, for the period January 1, 2025 through March 17, 2026.

Category F (Standard Processing). All records relating to the configuration, administration, access controls, and audit logs of the International Communications Filing System (ICFS), including records maintained by or on behalf of the Commission through any third-party vendor, contractor, or platform operator, including but not limited to any ServiceNow instance, any Okta identity management instance, or other commercial platform through which ICFS data is stored, processed, transmitted, authenticated, or made accessible, for the period December 1, 2025 through March 17, 2026, to the extent those records bear on the acceptance workflow for this Application, the ability of any party to modify docket entries after certification, the generation and posting of public notices, the population or non-population of acceptance date fields, and the timestamping and attribution of filings in the Pleadings and Comments record for ICFS File No. SAT-LOA-20260108-00016.

Category G (Standard Processing). All contracts, service level agreements, data governance provisions, access control policies, authentication protocols, and records retention obligations currently in effect as of the date of this request, together with any predecessor agreements in effect at any time since January 1, 2022, governing the Commission's contractual or licensing relationship with any third-party vendor providing the infrastructure, hosting, software platform, or identity authentication services on which ICFS operates, including but not limited to any ServiceNow instance and any Okta identity management instance.

Category H (Expedited Processing). All records reflecting the participation, policy contributions, institutional responsibilities, and rulemaking involvement of David Goldman during his service at the Federal Communications Commission from October 1, 2007 through January 31, 2015, including his service as Honors Attorney in the Spectrum and Competition Policy Division of the Wireless Telecommunications Bureau (approximately 2007 through 2009), Legal Advisor in the

Office of Chairman Julius Genachowski (approximately 2009 through 2010), and Senior Advisor in the Office of Commissioner Jessica Rosenworcel (approximately 2012 through 2015), to the extent those records bear on the development, implementation, interpretation, or administration of the Commission's satellite application processing procedures under 47 C.F.R. Part 25, the acceptance review standards under 47 C.F.R. Section 25.112, the certification requirements applicable to Form 312, the structured data requirements governing Schedule S, the waiver standards under 47 C.F.R. Section 1.3, the environmental certification framework under 47 C.F.R. Section 1.1307, and the foreign ownership review procedures under 47 C.F.R. Sections 1.5000 et seq. and 47 U.S.C. Section 310. This category further extends to any records reflecting the participation of David Goldman in application proceedings, rulemaking proceedings, ex parte presentations, or other filings before the Commission in any capacity from February 1, 2015 through March 17, 2026, to the extent such records exist and are maintained by the Commission, including filings made on behalf of Space Exploration Holdings, LLC, Space Exploration Technologies Corp., or any affiliated entity. This category is targeted because the individual who executed the Form 312 certification for this Application served in multiple Commission offices during the period the satellite application processing rules at issue in this proceeding were developed and administered. Those records are directly relevant to the Commission's evaluation of whether the documented deficiencies in the certified record could have been the product of inadvertence by the certifying official. Expedited processing is warranted because the inadvertence question is live in this proceeding, the reply window is fixed, and the records concern a discrete individual's service history rather than a subject-matter dragnet.

Category I (Standard Processing). All records relating to the development, approval, revision, and administration of FCC Form 312 and the associated Schedule S filing instrument, including

all submissions to and approvals by the Office of Management and Budget under the Paperwork Reduction Act of 1995, 44 U.S.C. Sections 3501 et seq., for OMB Control Number 3060-0678, for the period January 1, 2021 through March 17, 2026, including the most recent Information Collection Request, the supporting statement submitted to OMB, any public comments received during the PRA notice-and-comment process, and the OMB approval documentation, to the extent those records bear on the intended scope, technical limitations, and mandatory data fields of the approved collection instrument, the circumstances under which form-validation errors may or may not be overridden, and whether the Commission has previously identified or reported to OMB any limitation of the Schedule S instrument in accurately describing satellite systems at the scale this Application proposes.

Category J (Standard Processing). All records relating to the Commission's internal evaluation, testing, or documentation of the technical capabilities and limitations of the Schedule S structured data system, for the period January 1, 2020 through March 17, 2026, including any internal memoranda, staff guidance, technical specifications, system design documents, or user documentation describing the maximum number of satellites the Schedule S system can encode, the circumstances under which the REST API and JSON data format described in the Form Instructions may be used as an alternative or supplemental filing mechanism, the relationship between the Schedule S structured data and the GIMS antenna pattern files, and any known limitations of the system in processing or validating applications for constellations exceeding the parameters the instrument was designed to accommodate. This category includes any records reflecting the Commission's awareness, prior to the filing of this Application, that the Schedule S instrument could not accurately describe satellite systems at the scale the Applicant proposes,

and any internal consideration of whether modifications to the approved collection were necessary to accommodate applications of this character.

Category K (Expedited Processing). Any records required to be made available for public inspection under 5 U.S.C. Section 552(a)(2) that bear on the Commission's satellite application processing procedures, including any staff manual, policy statement, or administrative guidance governing acceptance review under 47 C.F.R. Section 25.112, validation error disposition, categorical exclusion application to megaconstellation-scale systems, or the exercise of delegated authority under 47 C.F.R. Section 0.291. To the extent such records exist and have not been placed in the Commission's public reading room, their absence is itself a violation of Section 552(a)(2) and their production is requested independently of the targeted FOIA categories above. Expedited processing is warranted because this is not a discretionary FOIA production but a demand that the Commission comply with an existing statutory obligation to make these records publicly available. The burden of compliance is the identification and publication of records the Commission is already required to maintain in its public reading room. Production is necessary for meaningful participation in the pending proceeding.

To the extent any records produced in response to these requests were before the Commission at the time of the acceptance determination or bear on the Commission's evaluation of this Application, Petitioner requests that the Commission identify those records as part of the administrative record under 5 U.S.C. Section 706 and place them on the docket of this proceeding for access by all parties, consistent with the permit-but-disclose designation of this proceeding and the public interest in a complete and transparent record.

Petitioner requests that the Commission preserve all records in these categories as of the date of this filing and not permit their routine destruction pending resolution of the FOIA requests and this proceeding to extent permissible by law. This preservation request extends to records maintained by or on behalf of the Commission through any third-party vendor, contractor, or platform operator, including any ServiceNow and Okta instances or comparable commercial infrastructure through which Commission filing systems operate. Destruction of records bearing on a pending FOIA request and a contested adjudication is independently unlawful under the Federal Records Act, and the Commission's preservation obligations extend to records in the custody or control of its contractors and vendors to the extent those records are agency records within the meaning of 5 U.S.C. Section 552.

XIII. R12: FORECLOSURE OF UNTIMELY SUPPLEMENTATION AND OPPOSITION TO WAIVER REQUESTS

The Applicant's opposition, filed March 16, 2026, does not indicate that the Applicant intends to provide an updated Ownership Attachment, a corrected or amended Form 312, an amended or supplemental Schedule S, bounded technical parameters for the proposed system, aggregate environmental analysis, ITU advance publication or coordination data, or any other material identified as absent from the certified record in the Bakken IO, Bakken EP, and Bakken SIO. The opposition is silent on whether the Applicant intends to cure any of the deficiencies placed on this record by seven independent parties. This request is preserved to the fullest extent allowable by law.

Petitioner respectfully requests that the Commission, to the fullest extent allowable by law:

First, deny any attempt by the Applicant to supplement the certified record of this Application outside the established pleading framework of this proceeding. The Commission's rules governing material amendments under 47 C.F.R. 25.116, the public notice requirements of 47 U.S.C. 309(b), and the public participation rights preserved across this record do not permit the quiet supplementation of a deficient application after the close of the pleading window without triggering new certification, new public notice, and a new period for public participation. The Applicant has had notice of the deficiencies since no later than March 9, 2026. The opposition was the Applicant's opportunity to address them. It did not.

Second, deny each of the Applicant's five pending waiver requests individually and collectively, for lack of good cause. The Applicant has not demonstrated that strict compliance with the rules it seeks to waive would be inequitable, unduly burdensome, or contrary to the public interest. The Applicant has instead demonstrated a continued pattern of declining to provide the information the Commission's own rules require while requesting that the Commission excuse the absence of that information. A waiver is not a substitute for compliance. It does not excuse an applicant from providing the information the waived rule was designed to produce. The Commission cannot waive its way to a complete record. It can only receive one.

Third, Petitioner places on the record the observation that the Applicant's opposition was executed by a Senior Satellite Policy Manager. It was not executed by any corporate officer of the Applicant, by any officer of the Applicant's corporate parent, by the individual who certified the Form 312, or by designated outside counsel of record. Petitioner does not contend that 47 C.F.R. Section 1.52 requires verification of attorney-signed or representative-signed pleadings. The observation is directed at evidentiary weight, not procedural compliance. The petitions to deny on this record were filed with sworn declarations under penalty of perjury as required by

Section 25.154(a)(4). The application itself carries an 18 U.S.C. Section 1001 certification imposing federal criminal liability for material misstatements. The opposition carries neither. It is an advocacy document whose factual representations rest on the good-ground-to-support-it standard of Section 1.52, which certifies only that the signatory has read the document and believes there is good ground to support it, not that the factual statements are true. The Commission cannot resolve factual disputes joined by sworn petition allegations by crediting unsworn opposition representations that occupy a lower position in the evidentiary hierarchy the Commission's own rules establish. The Commission is requested to state, in any order disposing of the Application, the evidentiary standard it applies when unsworn factual representations in an opposition conflict with sworn allegations in the petitions or with the certified application record.

Fourth, Petitioner further notes that the Applicant's counsel of record in this proceeding, HWG LLP, does not appear as signatory, co-signatory, or identified reviewer on the Applicant's opposition. This observation is relevant to evidentiary weight under the same framework identified above. Section 1.52 provides that an attorney's signature constitutes a certificate that the attorney has read the document and believes there is good ground to support it. Where counsel of record has declined to provide even this certification, the factual representations in the opposition lack the professional attestation Section 1.52 was designed to supply. The Commission is requested to state whether it considers factual representations in an opposition filing to carry the same evidentiary weight when counsel of record has declined to associate their name with those representations, and if so, on what basis.

Fifth, the Applicant certified the Form 312 as true, complete, and correct. The Applicant's Waiver Requests state that the filing instrument cannot accurately describe the proposed system. The Applicant's opposition requests expeditious grant on this record without curing either the

certification or the acknowledged inaccuracy. The Commission is requested to state how these three positions are reconcilable, and if they are not, which one governs.

Sixth, the Commission possesses independent enforcement authority under 47 U.S.C. §§ 154(i), 303, 308, 309, and 312, as well as 47 C.F.R. §§ 1.80, 1.89, and 1.93, including the authority to investigate material omissions, refer matters to the Enforcement Bureau, and where evidence supports, refer potential violations of 18 U.S.C. § 1001 to the Department of Justice. Petitioner does not presently request the exercise of this authority. Petitioner places on the record that the structural contradictions documented across this proceeding, including the irreconcilable certification, the stale ownership disclosures, and the absence of the information the certified record purports to contain, constitute the predicate for the eventual exercise of that authority should subsequent filings or conduct warrant. This preservation is made to the fullest extent allowable by law.

Seventh, Petitioner notes that the Applicant has a documented practice in this proceeding of attacking other parties' timeliness and compliance failures, including criticizing a competitor for falling short of deployment milestones and characterizing other parties' filings as untimely or insufficient. The Commission should apply the same standard evenhandedly to any challenge the Applicant may raise regarding the timing or sequencing of Petitioner's filings. The Applicant's opposition devotes substantial attention to the timeliness failures and deployment shortfalls of its competitors. The Applicant is itself wholly untimely. More than 30 days have elapsed since the February 2-3, 2026 merger triggered the Applicant's self-executing obligation under § 1.65 to amend its application. No amended Ownership Attachment has been filed. No corrected Form 312 has been filed. No amended Schedule S has been filed. No aggregate environmental analysis has been filed. The Applicant attacks its competitors for missing deployment milestones while it

has missed a mandatory 30-day regulatory deadline to disclose who owns the entity seeking authorization. A party that is itself in continuing violation of a self-executing filing obligation is in no position to challenge the timeliness of an unrepresented petitioner who has filed every objection at the earliest moment the Commission's undisclosed procedural architecture made each one discoverable.

XIV. WAIVER REQUEST AND ALTERNATIVE REQUEST FOR LEAVE TO CURE

To the fullest extent allowable by law, and to the extent that this filing or any prior filing by this Petitioner in this docket requires a waiver of any procedural requirement, deadline, vehicle classification, format specification, or filing prerequisite in order to receive the full procedural consideration the Commission's rules provide, Petitioner hereby requests such waiver narrowly and only to the extent necessary, pursuant to 47 C.F.R. § 1.3, on the following grounds.

First, Petitioner proceeds pro se, without counsel, from Risaralda, Colombia. The Commission applies a liberal construction standard to pro se filings, and that standard requires the Commission to evaluate each filing on its substantive merits without prejudice for technical procedural imperfections attributable to the absence of legal representation.

Second, the Commission cannot deny Petitioner's narrow procedural waiver while accepting a filing granting at the threshold the Applicant's five substantive waivers without raising an evenhanded treatment concern under 47 C.F.R. Section 1.3. Petitioner's waiver request is directed at procedural vehicle classifications, undisclosed timeliness requirements, and filing format specifications that were not identified in the Public Notice. The Applicant's five waiver

requests seek exemption from the processing round, milestone, surety bond, technical completeness, and Schedule S structured data requirements that constitute the substantive framework for evaluating applications of this scale. If the Commission concludes that good cause supports waiver of the substantive rules the Applicant's filing does not satisfy, it cannot simultaneously conclude that good cause does not support waiver of the procedural rules the Commission's own infrastructure prevented an unrepresented objector from identifying in time to satisfy. The standard is the same. The equities favor the party who is trying to comply over the party who has declined to.

Third, the timing and sequencing of Petitioner's filings reflect the progressive discovery of procedural requirements that were not disclosed in the notice that invited participation. Each filing was made in good faith, as promptly as the undisclosed requirements could be identified and satisfied through independent research. Any irregularity in timing or sequencing is directly attributable to the Commission's failure to disclose the procedural architecture of this proceeding in its public notice.

Fourth, the Commission cannot simultaneously accept for processing a deficient applicant filing containing mandatory validation errors on an accelerated timeline while enforcing technical procedural requirements against an unrepresented objector whose barriers were caused by the Commission's own systems, without raising the precise arbitrariness concern that the Administrative Procedure Act's reasoned decision-making requirement is designed to prevent.

Fifth, to the extent any request in this filing invokes a statutory or regulatory provision for which the Commission's rules do not establish an express procedural pathway for invocation by a member of the public in a satellite licensing proceeding, including but not limited to the

Government in the Sunshine Act provisions of 5 U.S.C. § 552b, the delegated authority limitations of 47 C.F.R. § 0.291, the licensing prerequisites of 5 U.S.C. § 558(b), the notice-and-comment requirements of 5 U.S.C. § 553, the environmental processing bar of 47 C.F.R. § 1.1317, and the whole-record identification obligations of 5 U.S.C. § 706, Petitioner requests waiver of any rule that would otherwise limit invocation of those provisions to a specific procedural vehicle, a specific party classification, or a specific stage of the proceeding that has not been disclosed in the public notice or the Commission's published rules. Each of these provisions is independently operative as a matter of federal law regardless of whether the Commission's Part 25 satellite licensing rules provide a labeled mechanism for raising them. A pro se filer who identifies a statutory obligation the Commission must satisfy before acting cannot be barred from placing that obligation on the record simply because the Commission's procedural framework does not include a form for doing so. To the extent any such rule exists and would otherwise operate to bar this invocation, Petitioner requests waiver of that rule for good cause, narrowly and only to the extent necessary.

Sixth, to the extent any provision of the Commission's rules requires that a procedural objection, request, or demand be raised at a particular stage of the proceeding or within a particular window in order to be preserved, and to the extent Petitioner's invocation of any such provision in this filing is untimely under those rules, Petitioner requests waiver of any such timeliness requirement for good cause and extraordinary circumstances, on the ground that the procedural requirements of this proceeding were not disclosed in the notice that invited participation, that the progressive discovery of those requirements necessitated the progressive filing of instruments as each requirement became identifiable, and that an unrepresented filer who identified a material statutory obligation after the close of an undisclosed window cannot be penalized for

raising it at the first moment it became discernible. This waiver request extends to any rule requiring that procedural objections be raised at a specific stage, any rule requiring that standing arguments be raised by a specific date, and any rule governing the sequence or timing of procedural demands in a satellite licensing proceeding, to the extent those rules were not disclosed in DA 26-113 and were not discoverable through the filing infrastructure the Commission made available.

Seventh, Petitioner bears the burden of raising objections before the Commission and is discharging that burden. The objections in this filing are being documented as they are discovered, at the time they are discovered, on a docket housed exclusively on third-party commercial infrastructure that does not appear in any cognizable United States government system. The Applicant could have returned, amended, or supplemented its deficient filing at any time. The Commission could have returned the Application under § 25.112(a) at any time. Neither has acted. The Applicant's 03-16-26 opposition filing requests that the Commission "find that authorizing SpaceX to deploy its Orbital Data Center system would serve the public interest and grant the application expeditiously." The Applicant has thus placed on the record its position that the Application should proceed to grant on the certified record as it stands, without amendment, without supplementation, and without cure of the deficiencies seven independent parties have identified. These requests are the exhaustive objections the Commission's rules require a petitioner to raise before administrative remedies are considered exhausted, directed at the Application the Applicant itself insists is ready for grant. To the extent Petitioner has not fully met that burden on any individual request, Petitioner requests waiver for good cause on the grounds stated herein.

XV: ON THE SCOPE OF THIS FILING

Petitioner respectfully addresses the scope of this Informal Request because the number of independent requests it contains may invite the characterization that the filing is disproportionate to what this proceeding requires. That characterization would invert the actual proportionality.

The Commission accepted for filing an application proposing authorization of up to one million satellites in the orbital commons, the largest satellite application in Commission history, on a certified record encoding three satellites, with a mandatory validation error unresolved, with an Ownership Attachment that was stale at the moment of acceptance, without ITU coordination data, during a partial government shutdown, within approximately two business days of available staff time. Seven independent parties filed formal oppositions. Approximately 1,500 members of the public filed comments. The proceeding is housed exclusively on third-party commercial infrastructure with documented chain-of-custody concerns. The Chairman made public statements on the merits on infrastructure owned by the Applicant's corporate family.

The requests in this filing are proportionate to that record. They are not proportionate to an ordinary satellite licensing proceeding because this is not an ordinary satellite licensing proceeding. The Commission chose to accept this Application. The Applicant chose to describe the proposed system in civilizational terms. The public interest standard the Commission is obligated to apply does not scale down because the filing that triggered it scaled up. If the Commission has accepted the burden of evaluating the largest satellite application in its history, it has accepted the burden of answering the procedural questions that application generates. Each request in this filing is independently grounded in a specific statutory or regulatory provision carrying a specific response obligation. None is rhetorical. None is duplicative. Each addresses a distinct procedural question the Commission must resolve before it may lawfully act. A filing that asks twenty-three specific questions about an application proposing one million satellites is

not overbroad. It is twenty-three millionths of the specificity the Application itself declined to provide.

It is the Applicant's burden to present a complete and evaluable application. It is the Commission's burden to evaluate it under the standards Congress established. The requests in this filing exist because neither burden has been discharged on the current record. When they are discharged, the requests will have been answered. Until they are, each one stands independently, each one triggers a response obligation, and silence on any one of them is a preserved ground for review.

Good cause and extraordinary circumstances have been shown across this record with specificity and documentation that no responding party has contested. The waiver requested is precisely coextensive with what is necessary to ensure that the substantive questions preserved across all filings in this docket receive the merits review that the public interest standard requires.

In the alternative, to the fullest extent allowable by law, to the extent the Commission identifies any deficiency in this filing or in any prior filing by this Petitioner in this docket, whether procedural, formal, or substantive, Petitioner requests that the Commission provide notice of that deficiency and afford a reasonable opportunity to cure before taking any adverse action based upon it, consistent with the principle that unrepresented filers who navigated procedural barriers not of their making and not disclosed in the notice that invited their participation cannot be held to a standard of technical perfection that the Commission's own infrastructure made impossible to achieve. This request for leave to cure is made in the alternative and does not concede that any deficiency exists.

To the extent the Commission designates this proceeding for evidentiary hearing under 47 U.S.C. § 309(e), Petitioner preserves all rights under 5 U.S.C. §§ 554, 556, and 557, including the right to present evidence, cross-examine witnesses, submit proposed findings, and receive all hearing documents.

Petitioner reserves all structural constitutional objections, including any arising under the Appointments Clause, the Non-Delegation Doctrine, and the Major Questions Doctrine as applied in *West Virginia v. EPA*, 597 U.S. 697 (2022) and *Loper Bright Enterprises v. Raimondo*, 144 S. Ct. 2244 (2024), as to any officer exercising delegated or plenary authority in this proceeding and as to the scope of the Commission's statutory authorization to license the system this Application describes.

Petitioner further requests formal placement on the service list for this proceeding under 47 C.F.R. § 1.47 and electronic service of all future filings, orders, and staff letters.

XVI. PRAYER FOR RELIEF

Petitioner Nikolai G. Bakken respectfully requests that the Commission, to the fullest extent allowable by law:

1. State on the record, in any order disposing of this Application, whether the record presents substantial and material questions of fact within the meaning of 47 U.S.C. Section 309(e), and if the Commission concludes that it does not, identify which of the specific factual disputes placed on the record by the petitions and objections it considers resolved and on what record evidence, in a manner consistent with *Astroline Communications Co. v. FCC*, 857 F.2d 1556 (D.C. Cir. 1988), *Gencor, Inc. v. FCC*, 832

F.2d 171 (D.C. Cir. 1987), and *Serafyn v. FCC*, 149 F.3d 1213 (D.C. Cir. 1998). If the Commission concludes that the Section 309(e) threshold is met, designate the Application for evidentiary hearing.

2. Hold the processing of this Application in abeyance and toll all applicable pleading windows until the Commission fulfills its affirmative disclosure obligations under 5 U.S.C. Section 552(a)(2)(C). The Commission cannot lawfully force the public to comment on the merits of an Application while simultaneously withholding the internal staff manuals, guidelines, and validation-override instructions the agency utilized to accept the Application in the first place. The proceeding must be paused until the public is granted access to the administrative rules governing it.
3. Direct the Applicant to file an amended Ownership Attachment within 14 days, certified under 18 U.S.C. Section 1001, reflecting the current post-merger ownership and control structure including all foreign-affiliated investors in the corporate parent, and hold in abeyance any further processing of the Application until the amended Ownership Attachment is filed and reviewed. The Commission possesses multiple independent authorities to compel this disclosure: the Commission may issue a letter of inquiry under 47 C.F.R. Section 1.89 directing the Applicant to produce the current ownership information; the Commission may return the Application as unacceptable for filing under 47 C.F.R. Section 25.112(a) until a current Ownership Attachment is provided; the Commission may condition any further processing on compliance with the self-executing amendment obligation of 47 C.F.R. Section 1.65; the Commission may initiate a foreign ownership review under 47 C.F.R. Sections 1.5000 et seq. requiring the Applicant to submit the disclosures that review demands; and the Commission may refer the

Applicant's failure to amend to the Enforcement Bureau under 47 C.F.R. Section 1.93 as a potential violation of Section 1.65 and, to the extent the pre-merger certification remains on the record as the operative disclosure, as a potential violation of 18 U.S.C. Section 1001. The Commission's obligation to obtain this information before acting arises independently under 47 U.S.C. Section 310(a) (prohibition on foreign government licensees), 47 U.S.C. Section 310(b) (foreign ownership limits and Commission authority to determine whether the public interest is served by permitting indirect foreign ownership exceeding 25%), 47 U.S.C. Section 308(b) (application requirements including character qualifications), and 47 U.S.C. Section 309(a) (public interest finding as prerequisite to grant). The Commission cannot discharge any of these obligations on a record that does not identify who owns the entity seeking authorization.

4. State on the record whether the Commission's foreign-ownership review under 47 U.S.C. Section 310(b) and 47 C.F.R. Sections 1.5000 et seq. has been conducted for this Application, and if so, whether it was conducted on the basis of the pre-merger Ownership Attachment, by what authority a pre-merger disclosure satisfies the Commission's post-merger review obligation, and whether the Commission has evaluated the citizenship, nationality, and foreign government affiliations of the investors introduced through the xAI acquisition, including but not limited to the Qatar Investment Authority and Abu Dhabi-based MGX, for purposes of the Section 310(a) and Section 310(b) analysis. If the review has not been conducted, the Commission is requested to state whether it intends to conduct the review before acting on the Application, and if not, on what legal basis it concludes that grant without a current foreign-ownership review satisfies Section 309(a). If the Commission determines it lacks sufficient information to

conduct the review, the Commission possesses the authority to obtain it through any of the mechanisms identified in the preceding prayer item, and Petitioner respectfully submits that the Commission's inability to conduct a mandatory statutory review because the Applicant has failed to provide the information that review requires is itself grounds for return of the Application under Section 25.112(a) or designation for hearing under Section 309(e).

5. State on the record whether any commissioner or member of a commissioner's staff engaged with the Chairman's February 4 or March 11, 2026 X posts in any manner, and if so, whether the Commission considers that engagement to constitute a deliberation within the meaning of 5 U.S.C. Section 552b(a)(2). State whether any deliberation among two or more commissioners concerning this Application has occurred or is anticipated in any format. If deliberation has occurred or will occur, state whether the Commission intends to comply with the open-meeting default of Section 552b(b) or invoke a specific exemption under Section 552b(c), identify the exemption, and make available the recorded vote of each member on the question of closure as required by Section 552b(d)(1). Deny any request to close deliberations on this Application in light of the overwhelming public interest and the Chairman's own public statements on the merits during the pendency of this proceeding, and preserve a complete transcript or detailed minutes of any closed session as required by Section 552b(f). State whether the disposition of this Application will be placed on the agenda of a public Open Meeting or resolved through notation voting, and if through notation voting, state the basis for concluding that genuinely independent, non-deliberative action by each commissioner is possible for a contested proceeding presenting seven formal oppositions, twenty-three

pending procedural requests, a mandatory Section 309(e) hearing-designation determination, and a Section 310(b) foreign-ownership review, in light of *Communications Systems, Inc. v. FCC*, 595 F.2d 797 (D.C. Cir. 1978), and the D.C. Circuit's reservation of the question whether excessive reliance on notation voting for significant contested matters exceeds what the Sunshine Act's purposes can sustain.

6. Establish a parallel docket entry in the Electronic Comment Filing System on [fcc.gov](https://www.fcc.gov) that mirrors or references the ICFS proceeding under File No. SAT-LOA-20260108-00016 and accepts public submissions through official .gov-hosted infrastructure. The documented chain-of-custody concerns regarding the ICFS platform, including post-certification modification capability, unpopulated acceptance workflow fields, and the hosting of the administrative record on third-party commercial infrastructure rather than government-controlled systems, require that the Commission provide an independent, government-administered repository for this proceeding's record whose integrity is not dependent on infrastructure the Applicant's own filings have placed in question. If the Commission declines, it should state on the record why a parallel ECFS docket for the largest satellite application in Commission history is not feasible when parallel ECFS and ICFS filing is expressly provided for other proceedings involving this same Applicant.
7. State on the record, in any order disposing of the Application, the date on which each of Petitioner's filings was received, the date on which the Commission acted, and whether any delay was consistent with the Commission's obligations under 47 U.S.C. Section 309(d) and 5 U.S.C. Section 555(b).

8. Address each of the twenty-three sub-requests consolidated in Request 6 expressly, on the record, in any order disposing of the Application, with a brief statement of grounds for any denial as required by 5 U.S.C. Section 555(e).
9. State on the record whether the Chairman's February 4 and March 11, 2026 posts on X, taken individually or together, constitute a prejudgment of the proceeding's merits within the meaning of *Sangamon Valley Television Corp. v. United States*, 269 F.2d 221 (D.C. Cir. 1959). State whether the Chairman participated in the acceptance-for-filing determination. State whether the Chairman will participate in the disposition of the Application. State whether the Chairman has considered whether the February 4 and March 11 posts would cause a reasonable observer to question the impartiality of the proceeding under due process standards. If the Chairman declines to recuse, state the basis for that determination on the record.
10. Identify in any order disposing of the Application the documents the Commission treats as constituting the complete administrative record for purposes of 5 U.S.C. Section 706 review, including whether Petitioner's filings, the public responses to the Chairman's X post, any undisclosed ex parte presentations, and post-filing developments bearing on the Applicant's corporate family are included.
11. State on the record the basis for accepting this Application within approximately two business days during a government shutdown, what review was conducted under 47 C.F.R. Section 25.112(a), and what limiting principle distinguishes the treatment of this Application from the contemporaneous Starcloud application.

12. State on the record, in any order disposing of the Application, whether unanswered allegations in the Bakken IO, Bakken EP, Bakken SIO, and Bakken CDN were treated as conceded, and if not, what standard the Commission applied to unaddressed allegations.
13. Preserve all records in the eleven categories identified in Request 11, including records maintained by or on behalf of the Commission through any third-party vendor, contractor, ServiceNow instance, or Okta identity management instance, and not permit their routine destruction pending resolution of the FOIA requests and this proceeding.
14. Deny any attempt by the Applicant to supplement the certified record outside the established pleading framework without triggering new certification, new public notice, and a new period for public participation under 47 C.F.R. Section 25.116 and 47 U.S.C. Section 309(b). Deny each of the Applicant's five pending waiver requests individually and collectively for lack of good cause. State, in any order disposing of the Application, the evidentiary standard the Commission applies when unsworn factual representations in an opposition filing conflict with sworn petition allegations filed under Section 25.154(a)(4) or with the Section 1001 certification on the application itself. In particular, state whether the Commission credits the factual representations in the Applicant's opposition at the same evidentiary weight as the sworn declarations supporting the petitions to deny, and if so, on what basis, given that Section 1.52 certifies only good ground to support a pleading and does not certify the truth of the factual statements it contains.
15. Grant the waiver requested under 47 C.F.R. Section 1.3 narrowly and only to the extent necessary, or in the alternative, provide notice of any identified deficiency and afford a reasonable opportunity to cure before taking any adverse action.

16. Confirm on the record that all ex parte presentations in this permit-but-disclose proceeding have been disclosed in compliance with 47 C.F.R. Section 1.1206(b), including any communications transmitted through platforms owned or controlled by the Applicant's corporate parent, and state on the record which of the three explanations identified in Request 2 accounts for the Applicant's zero ex parte filings.
17. Address each request in this filing expressly, on the record, in any order disposing of the Application. A disposition that is silent as to any request is itself a reviewable agency action under 5 U.S.C. Section 706(2)(A) and *Motor Vehicle Manufacturers Association v. State Farm Mutual Automobile Insurance Co.*, 463 U.S. 29, 43 (1983), and will be preserved as an independent Section 555(e) violation for each unaddressed item.

XVII. PRESERVATION

All requests in this filing are preserved to the fullest extent allowable by law for reply, petition for reconsideration under 47 U.S.C. § 405, application for review under 47 C.F.R. § 1.115, and judicial review under 47 U.S.C. § 402(b) and 5 U.S.C. § 706. This filing supplements and does not waive any argument in the Bakken IO, Bakken EP, Bakken SIO, or Bakken CDN. No request is abandoned by its consolidation in a single document. Each request is independently sufficient and stands on its own procedural and legal basis. Petitioner preserves all rights arising under 47 C.F.R. § 1.17 with respect to the accuracy and completeness of all factual representations made by any person in any filing in this proceeding. Petitioner does not presently allege a violation of § 1.17. Petitioner places the Commission on notice that the structural contradictions between the

certified record and the Applicant's unsworn opposition representations are documented on this record and may warrant evaluation under § 1.17 as the proceeding develops.

The Commission's failure to address any specific request in any order or staff letter disposing of the Application will be preserved as an independent § 555(e) violation and an independent arbitrary-and-capricious failure under *State Farm* for each unaddressed item.

Respectfully submitted,

Nikolai G. Bakken

Pro Se

Risaralda, Colombia

nikolai.bakken@gmail.com

Mailing Address:

200 104th Ave, PMB 321,

Treasure Island, FL 33706

DECLARATION

I, Nikolai G. Bakken, declare under penalty of perjury under the laws of the United States of America that the factual statements in the foregoing Informal Request are true and correct to the best of my knowledge and belief.

Executed on March 17, 2026 in Risaralda, Colombia.

/s/ Nikolai G. Bakken

Nikolai G. Bakken

Pro Se

Risaralda, Colombia

nickolai.bakken@gmail.com

Mailing Address: 200 104th Ave, PMB 321,

Treasure Island, FL 33706

CERTIFICATE OF SERVICE

I, Nikolai G. Bakken, hereby certify that on March 17, 2026, courtesy copies of the foregoing Informal Request were served by electronic mail.

Courtesy Copies Served by Electronic Mail to Parties Filing in This Proceeding:

Cecilia Tenge-Rietberg,
Sr. Satellite Policy Manager
Cecilia.Tenge-Rietberg@spacex.com
Space Exploration Technologies Corp.,
1 Rocket Road, Hawthorne, CA 90250

David Goldman
Vice President, Satellite Policy Space Exploration Holdings,
LLC 1155 F Street, N.W., Suite 475 Washington, DC 20004
david.goldman@spacex.com

William M. Wiltshire HWG LLP
1919 M Street, N.W.,
Eighth Floor Washington, DC 20036
wwiltshire@hwglaw.com

Michael J. Carlson / Negheen H. Sanjar
Kuiper Systems LLC
525 14th Street S
Arlington, VA 22202

Kaitlyn Mahoney / Maggie McNeece
Blue Origin, LLC
21218 76th Ave S.
Kent, WA 98032

Jarrett S. Taubman
Viasat, Inc.
901 K Street NW, Suite 400
Washington, DC 20001

Joel Parriott, PhD
American Astronomical Society
1667 K Street, NW, Suite 800
Washington, DC 20006

Lauren E. Morgan
National Aeronautics and Space Administration
Mary W. Jackson NASA Headquarters
300 Hidden Figures Way, SW
Washington, DC 20546-0001

Louis Peraertz
WISPA -- The Association for Broadband Without Boundaries
200 Massachusetts Avenue, NW, Suite 700
Washington, DC 20001

William Stewart
163 Cuba Hill Rd.
Huntington, NY 11743

Scott Imhoff
Cambium Networks, Inc.
3800 Golf Road, Suite 360
Rolling Meadows, IL 60008

/s/ Nikolai G. Bakken

Nikolai G. Bakken

Dated: March 17, 2026

APPENDIX: PROCEDURAL REFERENCE, AVAILABLE COMMISSION DISPOSITION AND SELF-CORRECTION MECHANISMS

This Appendix identifies procedural mechanisms available to the Commission in resolving the threshold deficiencies documented on this record. It is not advocacy for any particular outcome. Nothing in this Appendix narrows, waives, or forecloses any argument, theory, or ground for relief preserved in this filing or in any prior filing.

The Commission is not limited to grant or denial. Its procedural framework provides multiple intermediate mechanisms designed for precisely the circumstances this record presents.

I. Return as Unacceptable for Filing Authority: 47 C.F.R. Section 25.112(a). Available at any time before grant. Acceptance is an administrative determination, not a vested right.

II. Request for Additional Information Authority: 47 U.S.C. Section 308(b); 47 C.F.R. Section 1.89. Independent statutory authority to demand a complete record before acting.

III. Corrective or Supplemental Public Notice Authority: 47 U.S.C. Section 309(b); 47 C.F.R. Section 25.151. Acknowledges the original notice was incomplete and resets the comment period on a corrected record.

IV. Hearing Designation Authority: 47 U.S.C. Section 309(e); 47 C.F.R. Part 1, Subpart B. Mandatory when substantial and material questions of fact are present. Most recently invoked in DA 26-76 (January 23, 2026).

V. Abeyance Pending Rulemaking Authority: Inherent Commission authority; 47 C.F.R. Section 1.3. Holds processing while SB Docket No. 22-306 develops the framework the Applicant's own waiver requests acknowledge does not yet exist.

VI. Referral to the Committee for the Assessment of Foreign Participation Authority: Executive Order 13913; 47 C.F.R. Sections 1.5000 et seq. May be independently required when post-merger ownership introduces foreign sovereign-affiliated capital.

VII. Redesignation as Restricted Proceeding Authority: 47 C.F.R. Section 1.1208. Available on the Commission's own motion when structural conflicts render the permit-but-disclose framework inadequate.

VIII. Referral to the Enforcement Bureau Authority: 47 U.S.C. Sections 154(i), 303, 312; 47 C.F.R. Sections 1.80, 1.89, 1.93. Parallel investigative track for the Section 1.65 violation, certification questions, and Section 1.17 concerns.

IX. Reconsideration on the Commission's Own Motion Authority: 47 U.S.C. Section 405(b). Broadest self-correction authority. Extends to any prior action including the acceptance determination.

X. Sua Sponte Review of Delegated Action Authority: 47 C.F.R. Section 1.115(g). Any Commissioner may pull the proceeding to the full Commission at any time.

XI. Referral to the Department of Justice Authority: 18 U.S.C. Section 1001; 28 U.S.C. Section 535(b). Agency reporting obligation when information relating to a federal criminal violation is present on the record.

XII. Referral to the Office of Inspector General Authority: Inspector General Act of 1978, as amended. Independent investigation of Commission conduct in this proceeding.

XIII. Consultation with the Office of Government Ethics Authority: 5 C.F.R. Part 2635; 18 U.S.C. Section 208. Authoritative determination on recusal and impartiality questions without relying solely on the decision-maker's self-assessment.

XIV. Consultation with the Council on Environmental Quality Authority: 40 C.F.R. Parts 1500-1508; 42 U.S.C. Section 4332. External guidance on whether the extraordinary circumstances exception to categorical exclusion is triggered.

XV. Consultation with the Office of Management and Budget on PRA Compliance Authority: 44 U.S.C. Sections 3501 et seq.; OMB Control Number 3060-0678. Determination of whether the approved collection instrument remains adequate for applications at this scale.

XVI. Congressional Notification Authority: Inherent congressional oversight authority. Institutional acknowledgment that the proceeding raises questions that may exceed existing statutory authorization.

XVII. Voluntary Remand Authority: Inherent authority recognized by the D.C. Circuit. Last-resort self-correction. Every unaddressed request is a potential remand issue.